

JACKSON, J., dissenting

criminal law are lifted with respect to the exercise of a President's official duties. After today's ruling, the President must still "take Care that the Laws be faithfully executed," Art. II, §3; yet, when acting in his official capacity, he has no obligation to follow those same laws himself.

But whatever additional power the majority's new Presidential accountability model gives to the Presidency, it gives doubly to the Court itself, for the majority provides no meaningful guidance about how to apply this new paradigm or how to categorize a President's conduct. For instance, its opinion lists some examples of the "core" constitutional powers with respect to which the President is now entitled to absolute immunity—a list that apparently includes the removal power, the power to recognize foreign nations, and the pardon power. *Ante*, at 607–609. However, the majority does not—and likely cannot—supply any useful or administrable definition of the scope of that "core." For what it's worth, the Constitution's text is no help either; Article II does not contain a Core Powers Clause.⁶ So the actual metes and bounds of the "core" Presidential powers are really anyone's guess.

Nor does the majority explain how to consistently distinguish between official and unofficial acts. Quite the opposite, in fact. While acknowledging that this is a critical line that courts must draw in order for its new accountability model to work properly, the majority simultaneously cautions that making this distinction "can be difficult"—likely a gross understatement given the recognized "breadth of the

⁶Some of the powers the majority designates as "core" powers are, at best, implied from indefinite constitutional language. See, *e.g.*, *Seila Law*, 591 U. S., at 268–269 (KAGAN, J., concurring in judgment with respect to severability and dissenting in part) ("Nowhere does the text say anything about the President's power to remove subordinate officials at will"); *Zivotofsky v. Kerry*, 576 U. S. 1, 11 (2015) ("[T]he Constitution does not use the term 'recognition,' either in Article II or elsewhere"); *id.*, at 63 (ROBERTS, C. J., dissenting) (calling the "asserted textual bases" for an exclusive Presidential recognition power "tenuous").